

Performance Work Statement (PWS)

**Drinking Water Sampling Service Contract
Fort Buchanan, PR**

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1.0 Introduction. The Contractor shall provide services, personnel, management, transportation, equipment, materials, supplies, insurance, supervision and all necessary to perform sampling and chemical analysis of the Drinking Water Distribution System located at the US Army Garrison Fort Buchanan, Puerto Rico. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1 Background. Fort Buchanan is a U.S. Army Reserve installation in Puerto Rico located in the Municipalities of Guaynabo and Bayamon, within the San Juan metropolitan area. It serves under direct control of the Installation Management Command, Atlantic Region. Its mission is to synchronize, integrate, and deliver installation services and facilities in support of Senior Commanders in order to enable a ready and resilient Army.

Objective. The work shall be conducted in accordance with the Safe Drinking Water Act requirements and the sampling protocols/methods as defined by the US Environmental Protection Agency and any other applicable DOD, Federal, State, and local code regulation, or directive as applicable.

1.2 Climatic Conditions. The average annual rainfall is 71 inches; with the wettest months being September thru January. The humidity level averages 75% throughout the year. The average annual maximum and minimum temperatures are approximately 85 and 70 degrees Fahrenheit, respectively. The prevailing wind direction at US ARMY Garrison Fort Buchanan are easterly trade winds during much of the year with an average speed of 3.5 mph.

2.0 Requirements

2.1 General

Scope. The Contractor shall furnish all labor, personnel, materials, supervision, equipment, and insurance necessary to perform drinking water sampling services, samples collection, samples transportation, and laboratory testing according to the service frequency specified on Technical Exhibit 1 for a period of one (1) year plus four (4) option periods. This is a non-personal services contract. The personnel rendering the services are not subject; either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.

A general description of the required services are listed as follows:

WEEKLY DRINKING WATER SAMPLING SERVICE: On a weekly basis, the contractor shall collect two (2) drinking water samples and perform analysis for heterotrophic bacteria and total coliforms (**including fecal coliforms and E.Coli**), additionally, the contractor shall perform a residual chlorine level analysis within the same sampling event as the Fecal & Microbiological.

QUARTERLY FULL CHEMICAL SAMPLING: Every three months the contractor will collect two (2) full chemical sampling and analysis for all the applicable USEPA Primary Drinking Water Standards.

QUARTERLY GROUND WATER WELL SAMPLES: The contractor shall perform well parameters sample event, at the Fort Buchanan Ground Water Well. The specific sampling parameters are Total Coliforms, Volatile Organic Compounds, Total Hardness, Heterotrophic Bacteria, Total Metals, Turbidity or other parameters in conformance to Fort Buchanan's potable water issued permit by the Puerto Rico Department of Health (PRDH), see TE#2.

SEMI-ANNUAL LEAD AND COPPER SAMPLING: The contractor will schedule semi-annual Lead and Copper sampling, analysis and reporting in accordance to PRDH permit requirements.

All of the above Sampling Events and Chemical analyses shall be processed and results shall be turned over to the DPW Environmental Division within **30 Days** from sample event in order to be able to issue a Public Notice to the community in the event that a given parameter exceeds the Maximum Concentration Levels (MCL) as defined by the EPA.

All parameters that exceed the EPA's MCLs must be immediately notified to the Environmental Division.

2.2 General Information

2.2.1 Period of Performance. The period of performance for this effort will be a base year of 12 months from date of award and three (3) option periods of twelve (12) months as follows:

Base Year	1 NOV 2026 to 31 OCT 2027
Option Year 1	1 NOV 2027 to 31 OCT 2028
Option Year 2	1 NOV 2028 to 31 OCT 2029
Option Year 3	1 NOV 2029 to 31 OCT 2030
Option Year 4	1 NOV 2030 to 31 OCT 2031

2.2.1.1.1 Place of Performance. The work to be performed under this contract will occur at US Army Garrison Fort Buchanan, which covers approximately 746 acres in the Municipalities of Bayamon and Guaynabo, Puerto Rico. The work to be performed under this contract will be performed at the locations listed in Technical Exhibit 1

2.2.1.1.2 Hours of Operation. The Contractor shall perform services at Fort Buchanan during the core hours of operation from 7:00 AM – 4:00 PM Monday through Friday. The exception this are Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. Prior to performance of services outside the locally established hours of operation, the Contractor shall request and obtain, in writing, approval from the Contracting Officer. The Contractor shall at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. Overtime work is allowed, however, the Government will not cover these costs.

2.2.1.1.3 Contingency Services. **NA**

2.2.1.1.4 Emergency Services. **NA**

2.2.2 Recognized / Government Holidays. The Contractor is not required to work on the legal public holidays listed below. Holidays occurring on weekends will be observed as directed by the published Army calendar.

New Year's Day	2-Jan
Martin Luther King Jr's Birthday	3rd Monday in January
Washington's Birthday	3rd Monday in February
Good Friday	Friday preceding Easter Sunday
Memorial Day	Last Monday in May

Independence Day	4th of July
Juneteenth	19 June
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
Veterans Day	11 th of November
Thanksgiving Day	4th Thursday in November
Christmas Day	25-Dec

2.2.3 Medical Emergency Services.

2.2.3.1 The Contractor shall make available competent personnel trained and capable of dealing with minor personnel injuries. The Contractor or their employees shall immediately notify their supervisor of any accident requiring emergency medical treatment. In case of emergency the COR and/or the Contractor shall contact the Fire/Ambulance Service Emergency Number: (787) 707-5911.

2.2.3.2 Emergency medical treatment and services for Contractor personnel is the responsibility of the Contractor.

2.2.4 Contract Administration and Management.

2.2.4.1 Post Award Conference/Performance Evaluation Meetings. The Contractor shall attend the post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation (FAR) Subpart 42.5. The KO and Contracting Officer's Representative (COR) shall meet periodically, quarterly as a minimum with the Contractor to review the Contractor's performance. Written minutes of such meetings will be recorded by the Government and signed by the Program/Project Manager and the Contracting Officer, or COR and distributed within five (5) workdays after the meeting. The Contractor may request a meeting with the Contracting Officer or COR when the Contractor believes such a meeting is necessary. Written minutes of such meetings shall be recorded by the Contractor and signed by all participants involved and distributed within five (5) workdays after the meeting. In either case, if the Contractor does not concur with any portion of the minutes, recorded by the Government or the Contractor, such non-concurrence shall be provided in writing to the Contracting Officer within two (2) calendar days following receipt of the minutes.

2.2.4.2 Performance/Progress Meetings will be held as necessary. There may be occasions when subsequent meetings will be called by either party to reconfirm mutual understandings and/or address deficiencies in the QC system or procedures which may require corrective action by the Contractor. The Contractor Representative shall meet with the COR and/or Contracting Officer

(KO) as required. A mutual effort will be made to resolve all problems identified. The Contractor Representative and the Quality Assurance Representative shall sign the written minutes of these meetings.

2.2.4.3 Contract Administration. Notwithstanding the Contractor's responsibility for total management during the performance of this contract, the administration of the contract requires maximum coordination between the Government and the Contractor.

2.2.4.4 The following provides the roles and their respective authority during the performance of the contract.

Government POCs

Table 1: Government POC.

Contracting Officer	Contract Specialist	Contracting Officer's Representative
Felix R. Marrero Contracting Officer - Fort Buchanan Mission and Installation Contracting Command 34 Southgate Road Fort Buchanan, PR 00934 Desk: 787-707-2494 Email: felix.r.marrero2.civ@army.mil	XXX	Mr. Anibal Negron, P.G., R.E.M Chief Environmental Division Directorate of Public Works 34 Southgate Road USAG Fort Buchanan PR 00934 Office: (787) 707-3575 / 3522 anibal.negron1.civ@army.mil

2.2.4.4.1 Contracting Officer (KO). The KO is the only person authorized to direct changes in any of the requirements under this contract, and, notwithstanding any provisions contained elsewhere in this contract, said authority remains solely in the KO. In the event the Contractor effects any such change at the direction of any person other than the KO, the change will be considered to have been made without authority and solely at the risk of the Contractor. All contract administration will be effected by the KO. Communications pertaining to contractual administrative matters shall be addressed to the KO. No changes in or deviation from the terms and conditions shall be affected, without a written modification to the contract, executed by the KO authorizing such changes.

2.2.4.4.2 Contracting Officer's Representative (COR). The KO shall designate contract level CORs during the term of this contract, under Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.201-7000 "Contracting Officer's

Representative.” The COR will provide assistance in identification and resolution of problems, conflicts in priority, subtask requirement definitions, and other operations type problems. The COR will perform in accordance with the responsibilities and duties identified in the Interim Army Contracting Command – Contracting Officer’s Representative Policy Guide Pamphlet 70-1, (ACC PAM 70-1, dated 26 March 2010).

2.2.4.4.2.1. COR Authority. A letter of designation issued to the COR by the KO, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

2.2.4.4.2.2. COR Functions. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, and specifications; monitor Contractor’s performance and notify both the KO and Contractor of any deficiencies; coordinate availability of Government-furnished property, and provide site entry of Contractor personnel.

2.2.4.4.3 The Contractor shall not in any way represent that it is a part of the U. S. Government, or that it has the authority to contract or procure supplies for the account of the United States of America.

2.2.4.5 Quality Control (QC). Quality Control is the responsibility of the Contractor. The Contractor shall provide and maintain a quality control system that is acceptable to the Government IAW FAR 52.246-4, Inspection of Services-Fixed Price.

2.2.4.6 The COR Management System Tool (CORT). **NA**

2.2.5 Contractor Employees. The contractor shall supply a list of all authorized personnel collecting samples.

2.2.5.1 Key Personnel. **NA**

2.2.5.1.1 Project Manager (PM). **NA**

2.2.5.1.2 Safety Manager. **NA**

2.2.5.1.3 The duties listed in section **Error! Reference source not found.** can be combined with the duties outlined in section 2.2.5.1.1

2.2.5.2 Contractor Employees

2.2.5.2.1 Contractor Identification. All contract personnel shall be identified as a Contractor, i.e., badge, company logo, or uniform. All contract personnel are required to identify themselves such that they avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all correspondence (documents, emails etc.) or reports produced by the Contractor are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

2.2.5.2.2 Conduct of Personnel. The Contracting Officer may require the Contractor to remove from the job site any employee working under this contract for reasons of misconduct, security, or found to be under the influence of alcohol, drugs, or other incapacitating agents. Contractor employees shall be subject to dismissal from the premises upon determination by the Contracting Officer that such action is necessary in the interest of the Government. The removal from the job site or dismissal from the premises shall not relieve the Contractor of the requirement of providing sufficient personnel to perform the services as required by this contract.

2.2.5.2.3 Interface with Government Operation. Performance of work by Contractor personnel under the terms of this contract shall not interfere with regularly scheduled Government operational activities.

2.2.5.3 Standards of Conduct. Contractor personnel's conduct shall not reflect discredit upon the Government. The Contractor shall ensure that personnel present a professional appearance. The Contractor's employees shall observe and comply with all local policies and procedures concerning fire, safety, environmental protection, sanitation, security, and possession of firearms or other lethal or illegal weapons or substances. The Contractor is responsible for ensuring that any Contractor employees providing services under this contract conduct themselves and perform services in a professional, safe, and responsible manner. The Contractor shall remove, from the job site, any employee for reasons of misconduct or security. The Contractor shall ensure employee conduct complies with 41 U.S.C. 423 Procurement Integrity. The Contractor shall also ensure that no Contractor employees conduct political related activities or events on the installation.

2.2.5.4 Business Relations. The Contractor shall successfully integrate and coordinate all activity needed to execute the requirement. The Contractor shall manage the timeliness, completeness and quality of problem identification to a degree acceptable to the Government. The Contractor shall assure customer satisfaction and professional and ethical behavior of all Contractor personnel. Within the bounds of acquisition policy, the Army intends to work to find solutions that will be beneficial to both the Government and its Contractors. For this reason Non Conformance Letters (NCRs) shall be issued to the contractor in addition to the CPARS documentation.

2.3 Special Requirements

2.3.1 Security.

2.3.1.1 Access and General Protection/Security Policy and Procedures. The Contractor and all associated subcontractors' employees shall comply with applicable installation, facility, and area commander installation/facility access and local security policies and procedures (provided by a Government representative). The Contractor workforce must comply with all personal identity verification requirements as directed by DOD, Headquarters Department of the Army (HQDA), and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

2.3.1.1.1 Contractor personnel and property shall be subject to search and seizure upon entering and leaving the confines of Fort Buchanan. The Contractor shall be responsible for assuring that all personnel authorized to perform work under this contract obtain installation access as required. Before performance under this contract can begin, all Contractor employees shall complete and submit a DD Form 369, Police Record Check (latest version), with original signatures and a letter from the contractor listing all employees and the last four numbers of social security number for each to the Contracting Officer. This process historically takes 10 calendar days. This is being provided for the purpose of obtaining identification badges and access clearances to enter into the installation. Should the Force Protection Condition (FPCON) change, the government may require additional changes in contractor access. Government furnished badges shall be returned immediately to the government when an employees no longer perform work for the contractor or sub-contractor under this contract. New/replacement personnel shall obtain this same approval prior to the proposed new/replacement hire performing on the contract. The Contractor shall provide a current personnel roster listing all employees and the last four numbers of social security number for each to the Contracting Officer by the 1st day of each month thereafter. Contractor access to the post will be exclusively for work in connection with this contract.

2.3.1.2 Personnel. The Contractor shall provide a work force sufficient in number that possesses the skills, knowledge and training to satisfactorily perform the services required by this contract including State driver license for pickup truck. The Contractor shall ensure that personnel present a professional appearance. Individuals with a record of conviction for criminal offenses shall not be employed to perform services under this contract.

2.3.1.3 Vehicle Registration/Operation. Contractor and employee owned motor vehicles entering Fort Buchanan shall have a valid license plate, valid liability insurance, and shall be registered with the vehicle registration section of the Provost Marshal Office on Fort Buchanan. Vehicles such as bicycles and

mopeds entering Fort Buchanan shall also be registered with the vehicle registration section of the Provost Marshal Office. Vehicles shall be registered immediately upon contract award. License, registration, and insurance shall be maintained current during the time the vehicle is in use on the installations.

2.3.1.4 Contractor Vehicle Identification. Contractor owned vehicles used in the performance of services under this contract on the installation shall be marked with the contractor name.

2.3.1.5 Physical Security. The Contractor shall protect existing buildings, facilities, utilities, and equipment during working period and will be responsible for any damages resulting from operation and/or execution of this contract. The Contractor shall conduct his operations so as to cause the least possible interference with normal operations of the USAR Centers because the facilities (streets, driveways, and parking areas) will remain in operation during the entire maintenance period. Contractor must coordinate with the Quality Assurance Rep every time service is required.

2.3.1.6 Uniforms/Identification cards/badges. The Contractor shall provide uniforms for their employees for identification purposes. All Contractor personnel shall visibly have on them, at all times their identification cards. In the event a government issued identification card/badge is lost or stolen, the employee will immediately notify the government. The Contractor shall prohibit the use of Government issued identification badges by any persons other than the Contractor's employees it has been issued to.

2.3.2 Security Training

2.3.2.1 Antiterrorism Level I Training (AT I). All Contractor employees, to include subcontractor employees, requiring access to Army installations, facilities and controlled access areas shall complete AT Level I awareness training within fifteen (15) calendar days after contract start date, or two (2) work days after new employee onboarding. Copies of certificates of completion for each Contractor employee and subcontractor employee shall be submitted to the COR within fifteen (15) calendar days after contract start date, or two (2) work days after new employee onboarding. The training shall be taken annually by all personnel. AT Level I Awareness training is available at the following website:
<https://atlevel1.dtic.mil/at>.

2.3.2.2 iWatch Training. The Contractor and all associated sub-contractors shall brief all employees on the local iWATCH program (training standards provided by the requiring activity Anti-Terrorism Officer (ATO)). This local developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 15 calendar days of contract award and within 2 calendar

days of new employees commencing performance with the results reported to the COR not later than 15 calendar days after contract award.

2.3.2.3 Combating Trafficking in Persons (CTIP) Training: The Contractor shall ensure all personnel receive an annual awareness briefing or training on Combating Trafficking in Persons within fifteen (15) calendar days after contract start date, or two (2) calendar days after new employee onboarding. Proof that all personnel received CTIP awareness or training shall be made available to the Government within fifteen (15) calendar days after contract start date, or two (2) calendar days after new employee onboarding. The training shall be taken annually by all personnel.

2.3.2.4 The Contractor shall develop an OPSEC SOP/Plan with 90 days of the contract award. The OPSEC SOP/Plan must be reviewed and approved by the RA OPSEC Officer. The SOP/Plan will include the government's critical information, why it needs to be protected, where it is located, who is responsible for it and how to protect it. In addition, the contractor shall identify an individual who will be an OPSEC Coordinator.

2.3.2.5 Fraud, waste, and abuse. The Contractor shall be responsible for maintaining proper conduct and good discipline within Contractor occupied work area(s). Contractor personnel shall be encouraged to be alert to and report suspected situations of fraud, waste, and abuse, or other intentionally dishonest conduct against the Government observed during or in the performance of this contract. The contractor lines of communication are with the COR and the KO.

2.3.3 Existing Utility Systems. There are many underground utilities on Fort Buchanan that prohibit any excavation of soil (unless approved by the Directorate of Public Works, Engineering Division). In addition, there are above ground utility connections, wood and concrete poles, down guys, fire hydrants, manholes, water valves and transformer boxes that restrict free movement of equipment. Contractor shall take all necessary precautions to avoid damages to these utilities.

2.3.4 Fire Protection

2.3.4.1 The Contractor shall comply with AR 420-1 Army Facilities Management Chapter 25 and the Fort Buchanan Fire Prevention Program for fire protection and fire prevention.

2.3.4.2 Documents. The Contractor shall obtain a copy of the Fire Prevention Program from the Fire Department Technical Services Branch and familiarize themselves with the provisions of this. Attention is specifically called to provisions relative to sprinkler systems, storage of combustibles, smoking regulations, welding and cutting.

2.3.4.3 Extinguishing Equipment. **NA**

2.3.5 Accident Reporting

2.3.5.1 The Contractor shall maintain an accurate record of accidents resulting in injury or death and accidents resulting in damage to government property, supplies, and equipment. The Contractor shall report accidents immediately to the COR IAW the requirements indicated in AR 385-40, Accident Reporting and Records.

2.3.6 Safety. The Contractor shall safeguard and maintain all Government and Contractor property, as well as provide for the safety and well-being of personnel employed under this contract. The Contractor shall comply with EM-385-1-1, Safety And Health Requirements and AR 385-10, The Army Safety Program, all applicable Federal, Department of Army and Puerto Rico mandates and guidelines; and ensuring safe work and otherwise safe actions, behavior, and conduct of employees while at Fort Buchanan. It is preferred that the Contractor also have its employees complete the 10 Hour General Industry OSHA certification.

2.3.6.1 Safety Plan. The Contractor shall develop and implement a safety plan for its employees. The Contractor shall submit the Safety Plan to the KO with RFP documents and a revised version within one (1) day of contract award. Revisions shall be submitted five (5) calendar days prior to the effective date of change.

2.3.6.2 Occupational Safety and Health. The Contractor shall comply with the Occupational Safety and Health Administration (OSHA) standards on 29 CFR 1910. The Contractor shall be responsible for ensuring adherence to all applicable Fort Buchanan, Puerto Rico, and federal rules and regulations.

2.3.7 Environmental Requirements

2.3.7.1 Environmental Compliance. The Contractor shall comply with all federal, state, local and installation environmental laws, rules and plans. The Contractor shall use and store all materials, chemicals, and equipment used in the performance of this contract with these applicable laws. The contract shall follow the Globally Harmonized System of Classification and Labeling of Chemicals (includes SDS requirements).

2.3.7.2 The Contractor shall comply with all applicable environmental and sustainability requirements established under:

- Executive Order 14057, Catalyzing Clean Energy Industries and Jobs Through Federal Sustainability
- FAR Part 23
- DFARS Part 223
- All applicable FAR 52.223 and DFARS 252.223 clauses incorporated into this contract

- EPA Comprehensive Procurement Guidelines (CPG), these requirements apply to all materials, supplies, equipment, and services provided under this contract.

2.3.7.3 Sustainable Products – Water Sampling Operations. To the maximum extent practicable, the Contractor shall utilize sustainable products and practices in support of potable water sampling, laboratory analysis, and reporting activities, including:

- Sampling supplies and consumables containing recycled or recovered materials, when performance standards allow
- Recyclable or reusable sampling containers, coolers, and shipping materials when compliant with analytical integrity requirements
- Energy-efficient laboratory and field equipment (ENERGY STAR® or FEMP-designated where applicable)
- Low-toxicity or environmentally preferable cleaning agents and decontamination solutions
- Electronic data deliverables (EDD) and digital reporting to reduce paper consumption
- Fuel-efficient or alternative-fuel vehicles when performing field sampling on DoD installations, when available
- Waste minimization practices for purge water, PPE, and laboratory materials consistent with federal, state, and installation requirements

2.3.7.4 Exceptions

- The Contractor shall use EPA-designated recycled or environmentally preferable products unless: The product cannot be acquired competitively within a reasonable period of time;
- The product is not available at a reasonable price;
- The product does not meet required technical or analytical performance standards; or
- Use of such product would compromise sample integrity, chain of custody, regulatory compliance, or laboratory certification requirements.
- EPA CPG requirements constitute the minimum compliance standard.

2.3.8 Natural Resources

2.3.8.1 The Contractor shall comply with the Fort Buchanan Integrated Natural Resources Management Plan (INRMP) dated June 2014 (Technical Exhibit 6). Land Management Awareness Training. The contractor shall ensure that employees attend a yearly training that includes Endangered Species management and Munition Explosives of Concern (MEC) safety guidelines.

2.3.8.2 Threatened and Endangered Species. There are two federally listed species within Fort Buchanan boundaries: the Puerto Rican Boa and the “Palo de Rosa”. The Contractor shall follow the regulations in the INRMP (Technical

Exhibit 6) and instructions by the Environmental Division Personnel in relation to these endangered species.

2.3.8.3 Contractor shall comply with all regulations of the US Fish and Wildlife Service (USFWS), Environmental Protection Agency (EPA), and the Puerto Rico Department of Natural and Environmental Resources (PRDNER).

2.3.9 Labor Force

2.3.9.1 Adverse weather shall be considered. Delays due to inclement weather need to be coordinated with the COR.

2.3.10 Equipment. All Contractor sampling equipment and tools must be in good working order at all times. The Contractor shall provide all equipment and tools as required to perform their services.

2.3.10.1 Working Equipment. **NA**

2.3.10.2 Major equipment. **NA**

2.3.11 Record Keeping and Reporting.

2.3.11.1 The Contractor shall maintain complete and accurate files of documentation, records and reports required under the terms of this contract. Files shall be made available to the Contracting Officer or designated representative upon request. All files will become property of the Government and shall be turned over to the Contracting Officer at the completion or termination of this contract.

2.3.11.2 Disposal Manifest Record Keeping. **NA**

2.3.11.3 Work Schedule Plan. The Contractor shall submit a planned work schedule for the Base Year period. Detailed monthly schedules are submitted monthly on the 25th day of the preceding month.

2.3.12 Liability and Responsibility for Damaged Property

2.3.12.1 Damage to Government Property. The Contractor shall be held liable for damage or destruction of Government property (e.g. buildings, vehicles, sidewalks, fences, etc.) caused by the Contractor, Contractor personnel or representatives of the Contractor in the performance of services on this contract. The Contractor shall submit their damage report to the COR within 24 hours of damage and shall include the repairs and corrective action plan, as applicable. If the Contractor fails to take the required corrective action, the Government retains the right to exercise other rights or remedies available to the KO.

2.3.12.2 Damage to Privately-Owned Property. The Contractor shall be held liable for damage or destruction of privately owned property (e.g. privately owned vehicles), as defined in this PWS, caused by the Contractor, Contractor personnel or representatives of the Contractor in the performance of services in this contract. The Contractor shall take corrective action within 5 working days to repair damages or replace destroyed property. Contractor will purchase and maintain at all times a general third-party liability insurance policy of not less than \$500,000 per event coverage.

2.3.12.3 Damage Reports. The Contractor shall submit a damage reports to the Contracting Officer and designated representative within 24 hours of damage or destruction to Government property or privately owned property caused by the Contractor, Contractor personnel or representatives of the Contractor. The damage report shall detail the facts and the extent of damages or destruction and the corrective action taken by the Contractor to repair damages or replace destroyed property.

2.3.13 Contractor Manpower Report.

2.3.13.1 The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for the Department of the Army via a secure data collection site. The contractor is required to completely fill in all required data fields using the following web address: <http://www.ecmra.mil/>, and then click on "Department of the Army CMRA or the icon of the DoD organization that is receiving or benefitting from the contracted services.

2.3.13.2 Reporting inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year, beginning with 2016. Contractors may direct questions to the help desk at help desk at: <http://www.ecmra.mil>. Contractors may direct questions to the help desk by clicking on "Send an email" which is located under the Help Resources ribbon on the right side of the login page of the applicable Service/Component's CMR website at <http://www.ecmra.mil>. As part of its submission, the contractor will also provide the estimated total cost (if any) incurred to comply with this reporting requirement.

2.3.14 Type of Contract. The Government will award a firm-fixed price single award contract for a Base Year and four (4) Option Years.

3.0 Performance Requirements and Standards

3.1 High Level Objective (HLO).

3.1.1 Performance Task Requirements, Standards and Acceptable Quality Levels (AQLs).

3.1.1.1 General Requirement. The sampling services will be coordinated between the Contractor and the COR. No storage of removed materials, waste or equipment used to conduct services in support of the contract in buildings or premises is authorized. **Please refer to Technical Exhibit 1 for determination of samples location, frequency, amount, and type.**

Week Sampling Services: On a weekly basis, the contractor shall collect two (2) drinking water samples and perform analysis for heterotrophic bacteria and total coliforms (**including fecal coliforms and E.Coli**), additionally, the contractor shall perform a residual chlorine level analysis within the same sampling event as the Fecal & Microbiological and shall base cost for sampling on a single mobilization. Sample locations will be selected by the government and the list of buildings to be sampled are contained on **Table 1**, below. The mentioned samples shall be taken at one (1) randomly selected point by the DPW Environmental Division and the second sample shall always be taken at the Golf Course Potable Water Well site. Chemical analyses that exceed the Maximum Concentration Level's (MCL's) must be reported within **24 hrs** to the Environmental Division Chief. The Contractor will provide 1 electronic copy and 1 paper copy of the analytical data to the COR within 30 days of receipt from the laboratory. In the event that one weekly sample tests positive for total coliforms, the contractor shall repeat sampling and analysis of the affected point and also take one (1) sample up-gradient and one (1) sample down-gradient from the original sampling point. Additionally the contractor shall submit the result of the laboratory sample within 24 hours of the sampling time in order to release a Public Notice in compliance with the Safe Drinking Water Act.

3.1.1.2 Quarterly Sampling Services: Every three months the contractor will collect two (2) additional full chemical sampling and analysis for all the applicable USEPA Primary Drinking Water Standards. The required samples shall be taken at one (1) randomly selected point as directed by the contract COR. The Contractor will provide 1 electronic copy and 1 paper copy of the analytical data to the COR within 30 days of receipt from the laboratory.

3.1.1.3 Well Samples: An additional one (1) sample (Refer to herein as Well Parameters) will be taken at the potable Water Well which will screen for Coliform Total (EC-DW, SM 9223 B), THM VOC (EPA 524.2), Hardness (Total, SM 2340B), Heterotrophic Bacteria (SM9215 B), ICP Total Metals (Iron-Total, EPA 200.7), and Turbidity (SM2130 B). The Contractor will provide 1 electronic copy and 1 paper copy of the analytical data to the COR within 30 days of receipt from the laboratory.

3.1.1.4 The contractor shall perform, and base cost of well parameters sample event described above, concurrently with the full chemical sample event at the Fort Buchanan Golf Course Potable Water Well.

3.1.1.5 Semiannual Lead and Copper Sampling. This section expands prior water sampling to include semiannual potable water sampling and laboratory analysis for lead and copper for the Installation Public Water System (PWS). All work shall comply with 40 CFR Part 141, Subpart I (Lead and Copper Rule) issued by the U.S. Environmental Protection Agency, requirements of the Puerto Rico Department of Health as the Drinking Water State Primacy Agency, Army IMCOM drinking water program requirements, and applicable Unified Facilities Criteria (UFC) for potable water systems. Samples shall be analyzed by PRDOH-certified drinking water laboratory using EPA-approved methods, including EPA Method 200.8, or EPA Method 200.9 Laboratory detection limits shall be adequate to determine compliance with: Lead Action Level: 15 µg/L and Copper Action Level: 1.3 mg/L. Provide laboratory analytical reports to DPW within 10 business days of receipt. Calculate 90th percentile results, if required for compliance determination. Immediately notify the Government of any exceedance of action levels. Provide documentation suitable for submission to PRDOH. The Contractor will provide 1 electronic copy and 1 paper copy of the analytical data to the COR within 30 days of receipt from the laboratory.

Chemical analyses shall be process and results shall be turn over to the DPW Environmental Division within **72 hours** from sample event in order to be able to issue a Public Notice to the community in the event that a given parameter exceeds the Maximum Concentration Levels (MCL) as defined by the EPA. All parameters that exceed the EPA's MCLs must be immediately notify to the Environmental Division.

4.0 Performance Requirements Summary (PRS) Matrix

Note: Where the Acceptable Quality Level (AQL) is more than zero (0%), the Government data will be used to determine the AQL. The AQK will be determined on a monthly basis from inspection data. The percentage for the deviation will be calculated by dividing the number of defects by the number of Government observations.

PRS #	Performance Objective	Performance Standard	Acceptable Quality Level (AQL)	Incentive
1	The Contractor shall maintain an accurate record of accidents resulting in injury or death and accidents resulting in damage to government property, supplies, and equipment. The Contractor shall report accidents immediately to the COR IAW the requirements indicated in AR 385-40, Accident Reporting and Records	The Contractor shall perform accident reporting IAW PWS 2.3.5	Zero Deviation from performance standard on a monthly basis. (Risk assessed high risk)	Non-conforming services will result in Non-Conforming Reports issued and a potential negative CPARS narrative. A 5% deduction to the total monthly invoice may be applied.
2	The Contractor shall safeguard and maintain all Government and Contractor property, as well as provide for the safety and well-being of personnel employed under this contract. The Contractor shall comply with EM-385-1-1, Safety And Health Requirements and AR 385-10, The Army Safety Program, all applicable Federal, Department of Army and Puerto Rico mandates and guidelines; and ensuring safe work and otherwise safe actions, behavior, and conduct of employees while at Fort Buchanan. It is required that the Contractor also have its employees complete the 29 CFR Part 1910.120 OSHA certification and 29 CFR Part 146.	The Contractor shall ensure safe operations IAW PWS 2.3.6	Zero Deviation from performance standard on a monthly basis. (Risk assessed high risk)	Non-conforming services will result in Non-Conforming Reports issued to Contractor. A 20% deduction may apply for the total of the monthly invoice if safety violations are found.

PRS #	Performance Objective	Performance Standard	Acceptable Quality Level (AQL)	Incentive
3	The Contractor shall comply with all federal, state, local and installation environmental laws, rules and plans.	The Contractor shall comply with all environmental requirements IAW PWS 2.3.8	Zero Deviation from performance standard on a monthly basis. (Risk assessed high risk)	Non-conforming services will result in Non-Conforming Reports issued to Contractor. A 20% deduction may apply for the total of the monthly invoice if environmental requirements violations are found.
4	The Contractor shall comply with the Fort Buchanan Integrated Natural Resources Management Plan (INRMP) dated June 2014.	The Contractor shall comply IAW PWS 2.3.8.1	Zero Deviation from performance standard on a monthly basis. (Risk assessed high risk)	Non-conforming services will result in Non-Conforming Reports issued to Contractor. A 25% deduction may apply for the total of the monthly invoice if violations are found covered under the Natural Resources section of the PWS.

PRS #	Performance Objective	Performance Standard	Acceptable Quality Level (AQL)	Incentive
5	The Contractor shall be aware of the labor and equipment requirements needed to meet contract specifications. Adverse weather shall not be an excuse for not meeting specifications, as the Government expects the Contractor to work throughout all weather conditions and to apply additional labor and equipment as necessary to meet deadlines. Delays due to inclement weather need to be coordinated with the COR.	The Contractor shall comply with labor force requirements IAW PWS 2.3.9.1	A delay of one work day.	Non-conforming services will result in Non-Conforming Reports issued to Contractor. Deductions due to adverse weather shall be determined by the KO.
6	All Contractor owned equipment must be in good working order at all times. Equipment utilized shall be in proper mechanical conditions meeting industry standards for the tasks to be performed. All equipment and tools used by the Contractor shall have factory installed safety and noise reduction devices and be maintained in a safe operating condition at all times and utilized only for its design purposes.	The Contractor's equipment usage shall comply IAW PWS 2.3.10	Zero Deviation from performance standard on a monthly basis. (Risk assessed high risk)	Non-conforming services will result in Non-Conforming Reports issued to Contractor. Deductions due to equipment shall be determined by the KO.

PRS #	Performance Objective	Performance Standard	Acceptable Quality Level (AQL)	Incentive
7	The Contractor shall maintain complete and accurate files of documentation, records and reports required under the terms of this contract. Files shall be made available to the Contracting Officer or designated representative upon request. All files will become property of the Government and shall be turned over to the Contracting Officer at the completion or termination of this contract.	The Contractor shall conduct record keeping and reporting IAW PWS 2.3.11	Zero Deviation from performance standard on a monthly basis.	Non-conforming services will result in Non-Conforming Reports issued to Contractor. A 10% deduction shall apply to the monthly invoice due to non-compliances of record keeping and reporting.
8	The Contractor shall submit a damage reports to the Contracting Officer and designated representative within 24 hours of damage or destruction to Government property or privately owned property caused by the Contractor, Contractor personnel or representatives of the Contractor. The damage report shall detail the facts and the extent of damages or destruction and the corrective action taken by the Contractor to repair damages or replace destroyed property.	The Contractor shall report damage to property IAW PWS 2.3.12	Zero Deviation from performance standard on a monthly basis.	Non-conforming services will result in Non-Conforming Reports issued to Contractor. A 5% deduction shall apply to the monthly invoice due to non-compliances related to damage property.

PRS #	Performance Objective	Performance Standard	Acceptable Quality Level (AQL)	Incentive
9	The contractor shall report ALL contractor labor hours (including subcontractor labor hours) required for performance of services provided under this contract for the Department of the Army via a secure data collection site. The contractor is required to completely fill in all required data fields using the following web address: http://www.ecmra.mil/ , and then click on "Department of the Army CMRA" or the icon of the DoD organization that is receiving or benefitting from the contracted services.	The Contractor shall comply with the contractor manpower reporting requirement IAW PWS 2.3.13	Zero Deviation from performance standard on a monthly basis.	Failure to comply with the Contractor manpower report will result invoices not being accepted until issue is resolved. Non-conforming services will result in Non-Conforming Reports issued to Contractor.
10	The Contractor shall perform the required sampling services as mentioned in Technical Exhibits 1 and 2 on an as-needed basis. All sampling events will be coordinated between the Contractor, the DPW environmental support division, and the COR.	The Contractor shall perform the required sampling services IAW PWS 3.1.1.1, 3.1.1.2, 3.1.1.3, 3.1.1.4 and 3.1.1.5	2% Deviation from performance standard on a monthly basis.	Non-conforming services will result in Non-Conforming Reports issued to Contractor. A deduction of 2% of the total invoice will apply.

PRS #	Performance Objective	Performance Standard	Acceptable Quality Level (AQL)	Incentive
11	The contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with PWS.	The Contractor shall provide a quality control program IAW PWS 4.4	Zero percent Deviation from performance standard on a monthly basis.	Contractor compliance rate shall be utilized as objective evidence of contract compliance and documented into the CPAR System; Contractor may be required to re-perform the service or potential equitable adjustment by the contracting officer.

4.1 Quality Assurance. The Government will evaluate the Contractor's performance under the contract, IAW the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government will do to ensure that the Contractor has performed IAW the performance standards. The Government plan defines how the performance standards will be applied, the frequency of surveillance, and items to be inspected. Although the Government will develop a QASP, Government surveillance of Contractor performance is not limited to the QASP or the performance objectives, incentives/remedies, etc. outlined in the Performance Requirements Summary (PRS). The Government retains the right to inspect and test all services called for by the contract. The Government will perform inspections and tests in a manner that will not unduly delay the work. If any of the services performed do not conform to contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount.

4.2 Whenever the COR notifies the contractor of any deficiencies detected in the work performed, the contractor shall correct cited deficiencies within one (1) working day, or as otherwise authorized by the COR, after the notification in writing by the COR without affecting the regularly scheduled work.

4.3 Upon satisfactory completion by the Contractor and acceptance by the COR of the work completed by the contractor in accordance with this Performance Work Statement, payment will be approved using wide area workflow (WAWF) procedures. Failure to complete the work stated in this PWS may result in unfavorable Contractor Performance Assessment Reporting System (CPARS) ratings and/or deduction to be determined by the Contracting Officer.

4.4 Quality Control Plan (QCP). The QCP shall be delivered with the Contractor's proposal, to KO. All QCP updates shall be accepted by the KO. The contractor shall develop and maintain an effective quality control program to ensure services are performed IAW this PWS. The contractor shall develop and implement a comprehensive Quality Control Plan (QCP) to identify, prevent, and ensure non-recurrence of defective services IAW FAR 52.246-4, Inspection of Services-Fixed Price. The contractor's QCP is how the contractor assures work follows the requirements of the contract. The QCP shall address corrective actions without dependence upon government direction. The QCP shall be submitted to the contracting officer with your proposal submission and must be accepted by the KO IAW standard submittal requirements as defined in the Deliverables Schedule. Changes to the QCP shall be performed IAW the submittal process. The QCP shall include, as a minimum, quality control procedures that address the areas identified in the Performance Requirements Summary (PRS) as well as the below-listed items: A comprehensive program covering all services in this PWS to plan and deliver quality services to the government. The plan shall address the overall program management and administration. This includes the:

- a. Description of the quality control organization, including a chart showing lines of authority and acknowledgment that the QC staff shall implement the three phase control system for all aspects of the work specified. The key personnel shall include a QC System Manager who shall report to the Project Manager.
- b. The name, qualifications (in resume format), duties, responsibilities, and authorities of each person assigned a QC function.
- c. A copy of the letter to the QC System Manager signed by an authorized official of the firm which describes the responsibilities and delegates sufficient authorities to adequately perform the functions of the QC System Manager, including authority to stop work which is not in compliance with the contract. The QC System Manager shall issue letters of direction to all other various quality control representatives outlining duties, authorities, and responsibilities. Copies of these letters shall also be furnished to the Government.
- d. Procedures for scheduling, reviewing, certifying, and managing submittals, including those of subcontractors, offsite, suppliers, and purchasing agents.
- e. Procedures for tracking deficiencies from identification through acceptable corrective action. These procedures shall establish verification that identified deficiencies have been corrected. Reporting procedures, including proposed reporting formats. This shall include daily inspection reports.
- f. A list of the definable features of work. A definable feature of work is a task which is separate and distinct from other tasks, has separate control requirements, and may be identified by different trades or disciplines, or it may be work by the same trade in a different environment. Although each section of the specifications may generally be considered as a definable feature of work, there are frequently more than one definable features under a particular section. This list will be agreed upon during the coordination meeting.
- g. Address approach on how to avoid/minimize accidents resulting from equipment usage.

5.0 Deliverables

<u>DELIVERABLE</u>	<u>FREQUENCY</u>	<u># OF COPIES</u>	<u>MEDIUM/FORMAT</u>	<u>DISTRIBUTION</u>
A001 (PWS 2.2.1.1.2) Work Outside Normal Hours	1 week prior to work outside normal hours.	1 Electronic Copy	MS Word, email	COR
A002 (PWS 2.2.4.1) Meeting Minutes	Within 5 working day of meeting	1 Electronic Copy	MS Word	COR
A003 (PWS 2.2.4.5) Quality Control Plan	With proposal Updates: All QCP updates shall be accepted by the KO	1 Electronic Copy	MS Word	KO
A005 (PWS 2.2.5.1) Key Personnel – Provide name of Program Manager and Safety Manager	Submit resumes and organization chart (to include contact info) for initial and replacements	1 Electronic Copy	MS Word	KO
A006 (PWS 2.3.1.1.1) Form 369 Police Record Check	When applicable	1 Electronic Copy	MS Word	COR
A007 (PWS 2.3.1.3) Contractor Vehicles Registration	At the contract start date, insurance presented upon application of vehicle registration	1 Electronic Copy	By making application	Vehicle Registration Section of the Provost Marshal's Office and COR
A008 (PWS 2.3.2) Security Training Completion Certificates, Anti Terrorism Level I, iWatch, and CTIP	Within 1 calendar days after completion of training by all employees and Subcontractor personnel	1 Copy of Certificate upon request	Electronic	COR

<u>DELIVERABLE</u>	<u>FREQUENCY</u>	<u># OF COPIES</u>	<u>MEDIUM/FORMAT</u>	<u>DISTRIBUTION</u>
A009 (PWS 2.3.5) Accident Requiring Emergency Medical Treatment	Within two (2) hours of the incident	N/A	Email or Telephone	KO or COR
A010 (PWS 2.3.6.1) Safety Plan	During phase in and within 1 days of start of work Revisions: five (5) calendar days prior to effective date of change	1 Electronic Copy	Email	COR
A011 (PWS 2.3.7) Spills or Releases of Any Hazardous Substances	Immediate contact followed by written notification within one (1) hour	1 Electronic Copy	IAW 40 CFR 302 Designation, Reportable Quantities, And Notification	KO & COR
A013 (PWS 2.3.11.3) Work Schedule Plan.	Monthly, on the 25 of the preceding month.	1 Electronic Copy	MS Word	COR
A014 (PWS 2.3.12.3) Damage Report	Within 24 hours of damage or destruction to Government property or privately owned property	1 Electronic Copy	.PDF with digital signature	COR
A015 (PWS 2.3.15) Contractor Manpower Reporting Application (CMRA)	Annually NLT October 31, or IAW requirements at cmra.army.mil	Online Entry	Via website IAW requirements at cmra.army.mil	COR
A016 (PWS 3.1.1.2) Water Samples Analysis Report	Within 30 days after receipt of analyses from the laboratory.	1 Electronic Copy, 1 Paper Copy	Excel, Paper	COR

6.0 Related Documents

6.1 Definitions

CONTRACTING OFFICER (KO): A Contracting Officer is a government employee who has authority to enter into, administer, and or terminate contracts, as well as make related determinations and findings on behalf of the Government. (Note: The only individual who can legally bind the Government.)

CONTRACTING OFFICER'S REPRESENTATIVE (COR) - A representative from the requiring activity appointed by the Contracting Officer to perform surveillance and to act as liaison to the contractor

CONTRACTOR: A supplier or vendor awarded a contract to provide specific supplies or service to the Government. The term used in this contract refers to the prime.

DEFECTIVE SERVICE: A service output that does not meet the standard of performance associated with it in the Performance Work Statement

DELIVERABLE: A tangible or intangible object produced as a result of the project that is intended to be delivered to a customer (either internal or external). Examples of a deliverable are a report, a document, a server upgrade or any other building block of an overall project.

EXTREME WEATHER - Extreme weather is categorized as heavy winds and rain lasting or forecasted by the Government to last over two hours that causes the Garrison Commander to restrict activities on-post or of the sort that would impede successful grounds maintenance work.

FISCAL YEAR: A period beginning in October 1 and ending September 30 of the consecutive calendar year. The fiscal year is designated by the calendar year in which it ends.

GOVERNMENT FURNISHED PROPERTY (GFP): All equipment, goods and land possessed by the government and subsequently delivered or otherwise made available to the Contractor.

NATIONAL FIRE PROTECTION ASSOCIATION (NFPA): A non-profit organization that is concerned with the public safety and protection of the people and properties. The fire protection pamphlets published by the NFPA are accepted by the Federal Government and considered as directive in nature for this contract.

OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION (OSHA): Government agency part of the US Department of Labor with the primary responsibility for administering the Occupational Safety and Health act of 1970. This act has the purpose of preservation of human resource.

QUALITY ASSURANCE (QA): A procedure or set of procedures taken by the Government to ensure that services acquired under government contracts conform to the contract's quality and quality requirements.

QUALITY ASSURANCE SURVEILLANCE PLAN (QASP): A plan specifying the surveillance methodology used by the COR for surveillance of the contractor's performance.

QUALITY CONTROL (QC): Task performed by the contractor to ensure excellence of the organization's output.

6.2 ACCRONYMS

AR	Army Regulations
AT	Antiterrorism
ATO	Antiterrorism Officer
CFR	Code of Federal Regulations
CMR	Contract Manpower Reporting
CPARS	Contractor Performance Assessment Reporting System
COR	Contracting Officer Representative
CTIP	Combat Trafficking in Persons
DA	Department of the Army
DOD	Department of Defense
DPW	Directorate of Public Works
FAR	Federal Acquisition Regulation
FPCON	Force Protection Condition
FY	Fiscal Year
IA	Information Awareness
IAW	In Accordance With
IDIQ	Indefinite Delivery, Indefinite Quantity
INRMP	Integrated Natural Resources Management Plan
KO	Contracting Officer
NLT	No Later Than
OSHA	Occupational Safety and Health Act
PM	Project Manager
POC	Point of Contact
PR	Puerto Rico
PRDNER	Puerto Rico Department of Natural and Environmental Resources
PREPA	Puerto Rico Electric Power Authority
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QASP	Quality Assurance Surveillance Plan

QC	Quality Control
QCM	Quality Control Manager
QCP	Quality Control Plan
TE	Technical Exhibit
USFWS	US Fish and Wildlife
WAWF	Wide Area Work Flow

6.3 Applicable Directives and Publications

ACC PAM 70-1	Interim Army Contracting Command – Contracting Officer's Representative Policy Guide
AR 190-5	Motor Vehicles Traffic Supervision
AR 200-1	Environmental Protection and Enhancement
AR 385-10	The Army Safety Program
AR 420-1	Army Facilities Management
AR 530-1	Operations Security
AR 600-63	Army Health Promotion
40 CFR Part 302	Protection of Environment, Designation, Reportable Quantities and Notification
29 CFR 1910	Occupational Safety and Health Standards
DA PAM 385-40	Army Accident Investigations and Reporting
DOD Directive 5500.7-R	Joint Ethics Regulation
EM-385-1-1	Safety and Health Requirements Manual
Federal Standard # 313	Safety Data and Disposal Data for Hazardous Materials Furnished to Government Activities
HSPD 12	Homeland Security Presidential Directive 12 Policy for a Common Identification Standard for Federal Employees and Contractor
OMB M-05-24	Office of Management and Budget (OMB) Guidance Implementation of Homeland Security Presidential Directive (HSPD) 12 – Policy for a Common Identification Standard for Federal Employees and Contractors
FIPS PUB 201-2	Personal Identity Verification (PIV) of Federal Employees and Contractors
SDWA	Safe Drinking Water Act

6.4 Technical Exhibits (TEs)

Technical Exhibit 1 - Water Samples Chemical Analysis & Frequency

Technical Exhibit 2 - Requerimientos Muestreo Sistema de Agua Publico PWSID
132051 Fort Buchanan

Technical Exhibit 3 – Programa de muestreo para sistemas de agua potable non-
PRASA (2020-2022)

Technical Exhibit 4 – Programa de muestreo para sistemas de agua potable non-
PRASA Cumplimiento Regla de Plomo y Cobre (2026-2028)

Technical Exhibit 5 – Bacteriology siting plan RWHS

Technical Exhibit 6 – Chemical Sampling sites

6.5 Government-Furnished Property (GFP)

6.5.1 General. The Government will provide the property and services listed below. The Contractor shall not use the property or services provided by the Government for any purpose other than in the performance of this contract. All requests for Government furnished property and services shall be approved by the COR and KO in writing. All equipment shall be stored at the end of each working day at the designated staging area. The Contractor is responsible for securing daily all equipment, tools and property used to perform the services. The Government will not be responsible if any of the equipment is stolen or misplaced.

6.5.2 Facilities. **NA**

6.6 Contractor-Furnished Material (CFM)/Property (CFP)/Equipment (CFE). All Contractor furnished, material, property and equipment shall meet applicable Federal, state, local, Department of Defense and Army laws, codes, and regulations. Examples are provided below:

6.6.1 Contractor-Furnished Material and Responsibilities. The Contractor shall furnish all supplies, equipment, facilities, and services required to perform work under this contract.

6.6.1.1 Contractor-Furnished Items. The Contractor shall provide all facilities, vehicles, equipment, parts, tools, fuel, oil, materials and any other items required to perform all Contract requirements. The Contractor's property shall be operational as intended by the manufacturer, and be safe, clean, and suitable for use at a military installation. All Contractor furnished property and equipment are subject to COR inspection at all times.

6.6.1.2 Contractor Vehicles. The Contractor shall provide vehicles for the performance of services. The Contractor shall be responsible for maintenance, repair and operation of all contractor owned vehicles.

6.6.1.2.1 Contractor Vehicles Registration. All Contractor-owned and/or operated vehicles and trailers operating on the installation shall be registered within 10 working days of contract start date, by making application to the Provost Marshal Vehicle Registration Section located in Building 212, and the COR. Evidence of vehicle ownership and vehicle liability insurance must be presented upon application of vehicle registration.

6.6.1.2.2 Identification of Contractor Vehicles and Trailers. The company name shall be displayed on each of the Contractor's vehicles and trailers in a manner and size that is clearly visible and legible from a distance of 500 ft. All vehicles and trailers shall display a valid state license plate and meet current local and state vehicle registration requirements.

6.6.1.2.3 The Contractor shall stage all vehicles, trailers and equipment at the contractor assigned area at the end of each workday, unless otherwise directed by the Contracting Officer.

6.6.1.3 Contractor Equipment Safety. All equipment shall be operated in accordance with manufacturer's safety requirements, to protect the users, the public and property from injury and damages.

6.7 U.S. Department of Labor Wage Determination (DOL WD). WD will be for Guaynabo, Puerto Rico and in accordance with WD 15-5707 (Rev.-2), first posted on www.wdol.gov on 01/05/2016 or the most current version at the time of solicitation.

Technical Exhibit 1: Water Samples Chemical Analysis & Frequency:

FORT BUCHANAN PWSID #: PR0132051 DRINKING WATER SAMPLING SCHEDULE

BACTERIOLOGICAL SAMPLING

- Frequency: Monthly

Buildings in the currently siting plan:

- ❖ Bldg. 21 – Health Clinic
- ❖ Bldg. 168 - Bowling
- ❖ Bldg. 660 – Community Club
- ❖ Bldg. 511 – DPTMS Training Center
- ❖ Bldg. 608 – AAFES Recreational
- ❖ ½ MG Tank (Bldg. 384-385)
- Delivery the report to PRDOH into the 10 days of next month.

Chlorine Lectures: Water Well Golf Course

- **Frequency:** Monthly Average

CHEMICAL SAMPLING

- Frequency: Quarterly
 - **Full Chemical:**
 - ❖ Bldg. 183, Chapel
 - ❖ Bldg. 170, GYM Roberto Clemente
 - **Partially Chemical:**
 - ❖ Bldg 124, Golf Course Water Well Plant.

QTR 1

Jan-Mar

QTR 2

Apr-Jun

QTR 3

Jul-Sep

QTR 4

Oct-Dec

Delivery the report to PRDOH into the 10 days of next month.

Rainwater Harvestings Sampling

- **Lecture of Chlorine:** Frequency Monthly Average
- **Bromate:** Monthly: Frequency Monthly
- **Bacteriological:** Frequency One month sampling for each RWH.
- Delivery the report to PRDOH into the 10 days of next month.

LEAD and COPPER SAMPLING (40 SITES)

- Frequency: Biannually
 - ❖ DECEMBER (November)_delivery report before of 10 January.
 - ❖ JUNE (May)_delivery report before of 10 July.
- Delivery the report to PRDOH into the 10 days of next month.

Per- and polyfluoroalkyl substances (PFAS) SAMPLING (Army Public Health Command)

Current Year Schedule

FY25

Sampling Location/POE (Building And Point Name)	Sampling Frequency	Q1	Q2	Q3	Q4
FTB-INV(pfas)-GolfCourseWell/WTP(WQ)-POE-TreatmentBldg-O-ST	Quarterly			1	1
FTB-INV(pfas)-1/2MIL GAL Tank/OTR(WQ)-STRGTank-Blend-O-ST	Quarterly			1	1
FTB-INV(pfas)-B31 (Purchased)/ADO (WQ)-POE-PRASA-FT-*NP*	Semi-Annual/Triennial			1	

**Technical Exhibit 2: Requerimientos Muestreo Sistema de Agua Publico PWSID
132051 Fort Buchanan**



ESTADO LIBRE ASOCIADO DE
PUERTO RICO
Departamento de Salud

Copy

28 de mayo de 2015

Sr. Anibal Negrón
34 South Gate Road
Fort Buchanan, P.R. 00934

Re: **Requerimientos de muestreo sistema de Agua Público**
PWSID #: 132051
Sistema: US Army, Fort Buchanan (Reactivación)

Estimado señor Negrón:

La Reglamentación Nacional Primaria para Agua Potable define a un sistema de agua público como aquel que es utilizado para proveer agua para consumo humano y que tiene por lo menos quince (15) conexiones de servicio o regularmente sirve diariamente a un promedio de 25 personas o mas por lo menos sesenta (60) días al año. Por tal razón, el sistema público de agua de la compañía que usted representa fue incluido en nuestro inventario, asignándole el número de identificación (PWSID) 132051. Dentro de los requerimientos a estos sistemas se encuentra la realización de muestreos bacteriológicos y químicos para velar y mantener la calidad del agua que se suministra.

Estos muestreos son necesarios ya que el agua puede tener diferentes contaminantes perjudiciales a la salud. Muchos de esos contaminantes provienen de la intervención del hombre en las fuentes de abasto de agua como ríos, manantiales, etc., los cuales muchas veces son usados para actividades recreativas. La presencia de organismos patógenos en el agua es la causa de enfermedades como: gastroenteritis, hepatitis viral, giardiasis, shigellosis, cólera y otros. Es por esta razón que se requiere el análisis para diferentes contaminantes.

El sistema US Army Fort Buchanan consta de dos tipos de fuente, superficial (80% aprox.) y subterránea 20% aprox.). El abasto superficial proviene de la Autoridad de Acueductos y Alcantarillados (AAA). Dicha agua es clorada nuevamente antes de ser distribuida. Además, el sistema tiene un pozo con un equipo de cloración. Por estas razones podemos decir que el sistema tiene un componente consecutivo (AAA). Se define un sistema consecutivo como aquel que recibe parte o toda su agua tratada de otro sistema de agua público.

División de Agua Potable
PO Box 70184 San Juan, Puerto Rico 00936-8184
Tel. 787-777-0150 / Fax 787-777-0154



Luego de analizar las particularidades del sistema en su totalidad, entendemos que la frecuencia con la que los parámetros reglamentados deben ser realizados es la siguiente:

a. Muestreo de bacteriología

Las muestras para coliformes totales son tomadas mensualmente y la cantidad de muestras depende del número de la población servida. El sistema en referencia sirve a una población de 6,411 personas, por lo tanto deberá tomar **siete (7) muestras mensuales** para bacteriología.

b. Muestreos de químicos inorgánicos

La frecuencia de muestreo para estos químicos depende de la fuente de abasto utilizada por el sistema. Los sistemas cuya fuente es subterránea realizarán un muestreo cada tres (3) años. En el sistema en referencia, la fuente subterránea deberá realizar el muestreo para estos químicos **una vez cada tres años**.

c. Muestreo de químicos orgánicos

Todos los sistemas realizarán un muestreo inicial de **cuatro (4) trimestres consecutivos**.

d. Muestreo de químicos orgánicos sintéticos, herbicidas, plaguicidas y PCB's.

Todos los sistemas realizarán un muestreo inicial de **cuatro (4) trimestres consecutivos**.

e. Nitrato

Todos los sistemas realizarán, inicialmente, un muestreo trimestral durante el primer año. Luego pasarán a realizar un muestreo anual.

f. Nitrito

Todos los sistemas tomarán **una muestra cada tres (3) años**.

g. Plomo y Cobre

Recibirá documento separado para esta reglamentación.

h. Trihalometanos y Ácidos Haloacéticos

Se tomarán dos (2) muestras de cada uno de ellos cada noventa (90) días.

Todos estos análisis deberán ser realizados por un laboratorio certificado por este Departamento para análisis de agua potable (lista incluida). Los resultados de bacteriología serán reportados al Departamento los **primeros diez (10) días siguientes al mes en que fueron tomados**. Mientras que los resultados químicos serán reportados dentro de los **primeros diez (10) días siguientes al mes en el cual son recibidos** y/o en los **primeros diez días al final del periodo de muestreo** (lo que ocurra primero). El sistema debe proveer puntos de muestreo que cumplan con lo siguiente:

- Grifo en un lugar accesible
- Grifo sin rosca
- Grifo elevado por lo menos doce (12) pulgadas del suelo
- Grifo por lo menos a seis (6) pulgadas de la pared

El sistema también es responsable de preparar y enviar a este Departamento un informe de cloro residual. Éste podrá ser realizado por el operador del sistema y **deberá ser enviado a este Departamento junto al informe de bacteriología mensualmente**. Deberá utilizar la forma para el **Informe de Cloro Residual** incluida.

Es importante señalar que los análisis bacteriológicos e informes de cloro residual deben comenzar en el mes de julio de 2015 y continuar mensualmente mientras esté en operación el sistema. Los análisis para los parámetros químicos se realizarán según el Programa de Muestreo detallado anteriormente.

El no cumplir con el muestreo dentro del periodo establecido y/o no cumplir con los reportes de muestreo conlleva notificaciones de violación por muestreos no reportados ("**Monitoring Reporting o MR**"), de igual manera, el no cumplir con el nivel máximo de contaminante (**NMC**) conlleva una violación a la reglamentación.

Además, el sistema deberá completar la corrección de las deficiencias señaladas y solicitar el endoso del Departamento de Salud para sistemas de agua públicos de acuerdo al manual "Requisitos del Departamento de Salud para Otorgar Endoso a Proyectos Relacionados con Acueductos Públicos". Cualquier alteración o remodelación al sistema, así como cambio de encargado, población servida, etc. deberá ser informada a este Departamento. **Todo documento o informe sometido a este Departamento deberá incluir el nombre del sistema y el número de identificación asignado (PWSID).**

Cualquier duda o pregunta, favor de comunicarse a la División de Agua Potable a los teléfonos 787-777-0150 / 0151 / 0152 o vía fax al 787-777-0154. Nuestras oficinas están localizadas en la siguiente dirección:

Edificio Nacional Plaza
Avenida Ponce de León #431
Oficina #903
Hato Rey PR 00917

Cordialmente,


Javier O. Torres, PE
Director
División de Agua Potable

cf: Ing. Jesús Sáez -Región Metro, Ana M. Mendoza - Sección Non-PRASA, Sonia
Ferrer - Regla de Plomo y Cobre


OS/AMR

Technical Exhibit 3: Programa de muestreo para sistemas de agua potable non-PRASA (2020-2022)



ESTADO LIBRE ASOCIADO
PUERTO RICO
Departamento de Salud

PROGRAMA DE MUESTREO SISTEMAS DE AGUA PUBLICOS NON-PRASA SEGUNDO PERIODO DE CUMPLIMIENTO (2014-2016)

PWS-ID: 132051 SISTEMA: US ARMY, FORT BUCHANAN POBLACION: 6,411 p
(POBLACION FY-13)

PUNTO DE MUESTRO QUIMICO: Entrada a Distribución FUENTE DE AGUA: ☒ SUPERFICIAL ☒ SUBTERRANEA
(ENTRADA SISTEMA DE DISTRIBUCION)

NUMERO DE FUENTES DE AGUA: 2 TIPO DE SISTEMA: ☐ COMUNAL ☒ NO COMUNAL NO TRANSITORIO ☐ NO COMUNAL TRANSITORIO

GRUPO O PARAMETRO	FRECUENCIA REQUERIDA	AÑO											
		2014				2015				2016			
		ENE MAR	ABR JUN	JUL SEP	OCT DIC	ENE MAR	ABR JUN	JUL SEP	OCT DIC	ENE MAR	ABR JUN	JUL SEP	OCT DIC
QUIMICOS ORGANICOS VOLATILES (21) VOC's	4 TRIMESTRES CONSECUTIVOS CADA 3 AÑOS												
	1 CADA AÑO (SISTEMA CON PRIMERA REDUCCION)								X	X	X	X	
	1 CADA 3 AÑOS (SISTEMAS CON SEGUNDA REDUCCION)												
TTHM's	1 CADA TRIMESTRE EN FUENTES SUPERFICIALES CON POBLACION ENTRE 500 Y 9,999								X	X	X	X	X
	1 POR AÑO EN FUENTES SUPERFICIALES CON POBLACION <500								X	X	X	X	X
	1 POR AÑO EN FUENTES SUBTERRANEAS (DURANTE MES MAS CALIENTE)												
HAA-5	1 CADA TRIMESTRE EN FUENTES SUPERFICIALES CON POBLACION ENTRE 500 Y 9,999								X	X	X	X	X
	1 POR AÑO EN FUENTES SUPERFICIALES CON POBLACION <500								X	X	X	X	X
	1 POR AÑO EN FUENTES SUBTERRANEAS (DURANTE MES MAS CALIENTE)												
QUIMICOS ORGANICOS SINTETICOS (33) SOC's	4 TRIMESTRES CONSECUTIVOS CADA 3 AÑOS												
	2 TRIMESTRES CONSECUTIVOS CADA 3 AÑOS EN SISTEMAS CON POBLACION > 3,300 Y FRECUENCIA REDUCIDA								X	X	X	X	
	1 CADA 3 AÑOS EN SISTEMAS CON POBLACION ≤ 3,300 Y FRECUENCIA REDUCIDA												
INORGANICOS (10)	1 CADA 3 AÑOS EN SISTEMAS CON FUENTES SUBTERRANEAS								X				X
	1 CADA AÑO EN SISTEMAS CON FUENTE SUPERFICIAL												
NITRATO	4 TRIMESTRES CONSECUTIVOS												
	1 CADA AÑO								X	X	X	X	
NITRITO	1 CADA TRIMESTRE EN SISTEMAS CON MUESTRAS ≥ ½ MCL												
	1 CADA 3 AÑOS								X				
ASBESTO	1 CADA TRIMESTRE EN SISTEMAS CON MUESTRAS ≥ ½ MCL												
	1 CADA 9 AÑOS (próximo en el 20)								X				
SECUNDARIOS	1 CADA TRIMESTRE (SISTEMAS CON RESULTADOS ≥ AL MCL)												
	SE RECOMIENDA FRECUENCIA DE MUESTREO IGUAL A LA DE INORGANICOS								X				X

El coordinador de nuestra Oficina certificará los puntos de muestreo.

División de Agua Potable
PO Box 70184 San Juan, Puerto Rico 00936-8184
Tel. 787-777-0150 / Fax 787-777-0154



**PROGRAMA DE MUESTREO
SISTEMAS DE AGUA PUBLICOS NON-PRASA
SEGUNDO PERIODO DE CUMPLIMIENTO (2014-2016)
CONTINUACION**

PARAMETROS DE SOC's O VOC's DL	FRECUENCIA PARA PARAMETRO DL	AÑO											
		2014				2015				2016			
		ENE MAR	ABR JUN	JUL SEP	OCT DIC	ENE MAR	ABR JUN	JUL SEP	OCT DIC	ENE MAR	ABR JUN	JUL SEP	OCT DIC
	MESTREO TRIMESTRAL (LOS SISTEMAS COMENZARAN MUESTREO TRIMESTRAL DESPUES DE OBTENER UN RESULTADO $\geq$ DL HASTA QUE LE SEA OTORGADA UNA REDUCCION DE FRECUENCIA. EL SISTEMA PODRA SOLICITARLA AL DS CUANDO HAYAN COMPLETADO UN MINIMO DE 2 TRIMESTRE CONSECUTIVOS EN EL CASO DE LOS SUBTERRANEOS Y UN MINIMO DE 4 EN EL CASO DE SUPERFICIALES)												
PARAMETROS DE SOC's O VOC's MCL	FRECUENCIA PARA PARAMETRO MCL	ENE MAR	ABR JUN	JUL SEP	OCT DIC	ENE MAR	ABR JUN	JUL SEP	OCT DIC	ENE MAR	ABR JUN	JUL SEP	OCT DIC
	MESTREO TRIMESTRAL (LOS SISTEMAS COMENZARAN MUESTREO TRIMESTRAL DESPUES DE OBTENER UN RESULTADO $>$ MCL HASTA QUE LE SEA OTORGADA UNA REDUCCION DE FRECUENCIA. EL SISTEMA PODRA SOLICITARLA AL DS CUANDO HAYAN COMPLETADO UN MINIMO DE 2 TRIMESTRE CONSECUTIVOS EN EL CASO DE LOS SUBTERRANEOS Y UN MINIMO DE 4 EN EL CASO DE SUPERFICIALES)												

DOH/NON-PRASA/PROGRAMA MUESTREO 2014-2016

DL: DETECTION LIMIT

MCL: MAXIMUM CONTAMINANT LEVEL

DS: DEPARTAMENTO DE SALUD

NOMBRE (ENCARGADO): _____

FIRMA (ENCARGADO): _____

Technical Exhibit 4 – Programa de muestreo para sistemas de agua potable non-PRASA Cumplimiento Regla de Plomo y Cobre (2026-2028)



SECRETARÍA AUXILIAR PARA LA VIGILANCIA
Y PROTECCIÓN DE LA SALUD PÚBLICA
División de Salud Ambiental
Sección de Agua Potable

PROGRAMA DE MUESTREO SISTEMAS DE AGUA PUBLICOS NON-PRASA CUMPLIMIENTO REGLA DE PLOMO Y COBRE (2026-2028)

PWS-ID: PR0132051 SISTEMA: US ARMY, FORT BUCHANAN POBLACION: 6,411
(POBLACION FY-22)

Parámetro	Frecuencia Requerida	Número de Muestras	AÑO								
			2026			2027			2028		
			ENERO JUNIO	JULIO DIC.	JUNIO SEPT.	ENERO JUNIO	JULIO DIC.	JUNIO SEPT.	ENERO JUNIO	JULIO DIC.	JUNIO SEPT.
Plomo y Cobre	Muestreo Regular (2 semestres consecutivos)	40	X	X		X	X		X	X	
	Muestreo Reducido (1 vez al año) (junio a septiembre)										
	Muestreo Reducido (1 vez cada 3 años) (junio a septiembre)										

Nota: Este programa está basado en el último reporte de resultados de plomo y cobre correspondiente a su sistema y evaluados por nuestra Sección. Dicho programa podría variar y/o estar sujeto a los siguientes eventos:

- Si ocurre una excedencia al nivel de acción de plomo y/o cobre.
- Si no toma el muestreo de plomo y cobre en el periodo correspondiente.

Los sistemas que cumplan con dos muestreos semestrales sin reflejar excedencia a los límites de acción podrán obtener una 1ra reducción en el muestreo de plomo y cobre.

1ra reducción – una vez al año y la mitad de los puntos. (Nunca menor de 5 puntos)

Los sistemas que cumplan con el muestreo anual por tres años consecutivos sin reflejar excedencia a los límites de acción podrán obtener una 2da reducción en el muestreo de plomo y cobre.

2da reducción – una vez cada tres años.

Las Mejoras a la Reglamentación de Plomo y Cobre, efectivas a partir de noviembre de 2027, podrían afectar el programa de muestreo del 2028 en adelante.

Fecha para reportar

Semestre de enero a junio, en o antes del 10 de julio.

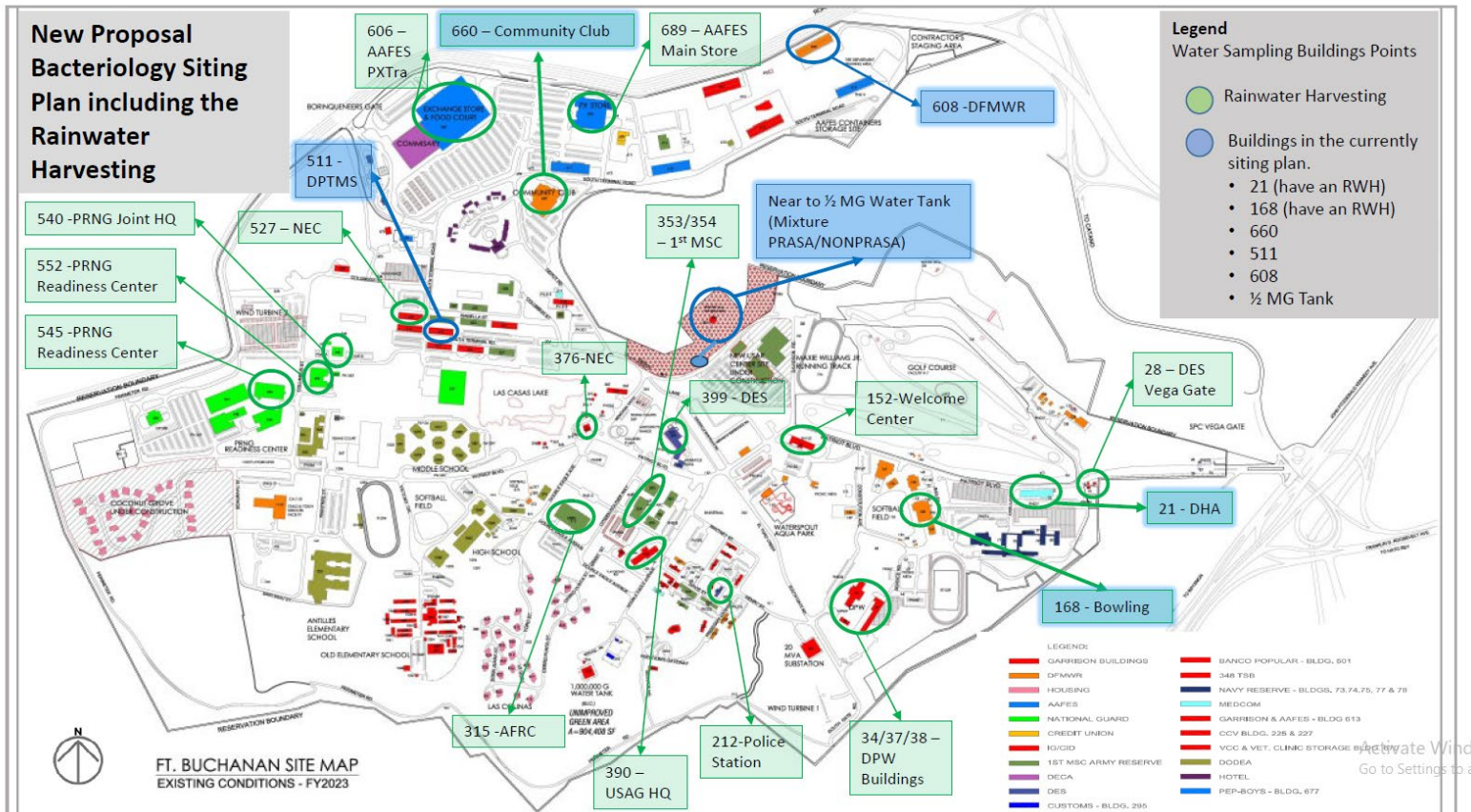
Semestre de julio a diciembre, en o antes del 10 de enero.

Muestreo reducido junio a septiembre, en o antes del 10 de octubre.

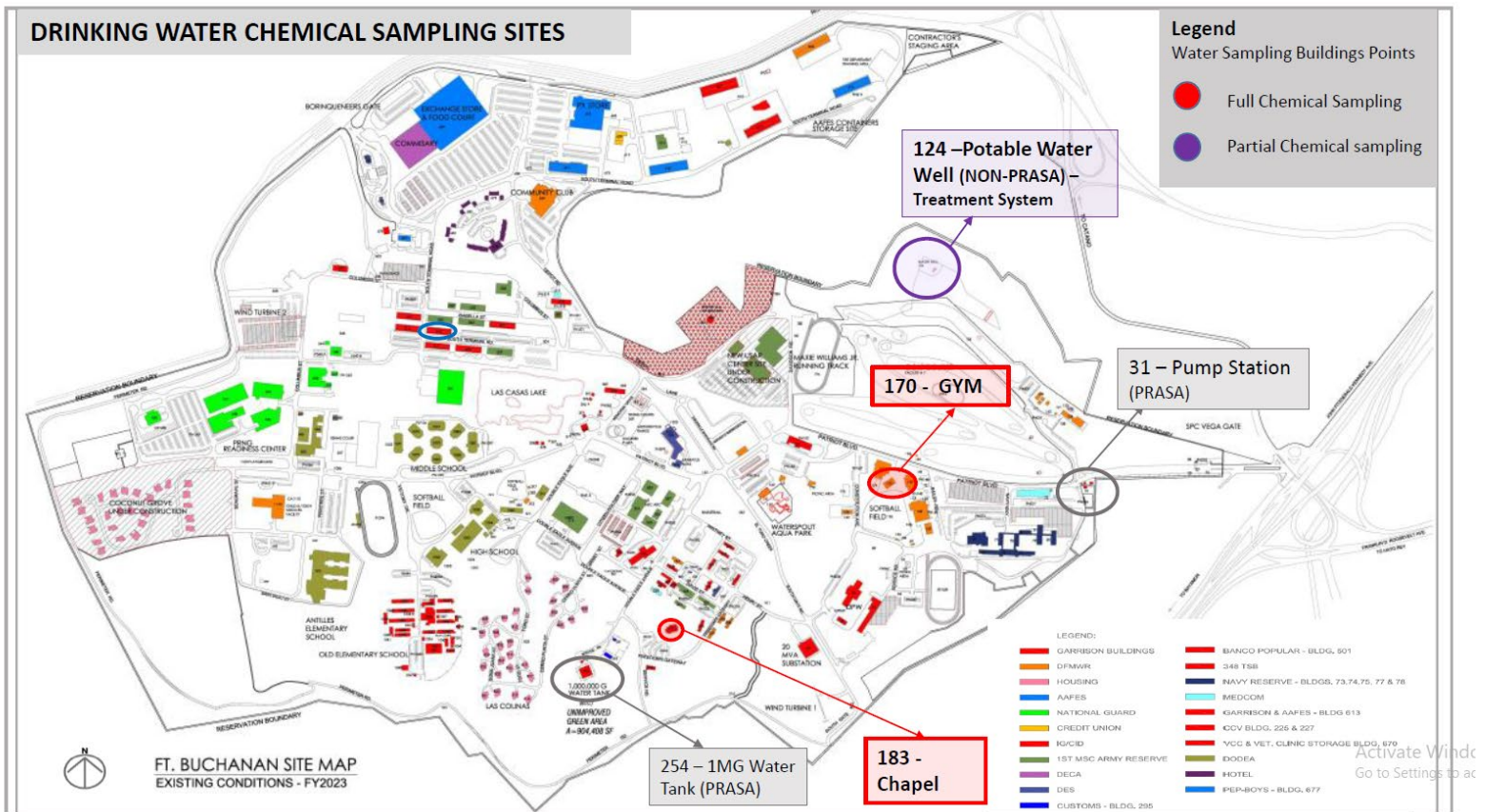
Tabla: Cantidad requerida mínima de muestras a tomar de Plomo y Cobre			
Tamaño del sistema	Población servida	Cantidad de muestras de Pb y Cu (Muestreo Regular)	Cantidad de muestras de Pb y Cu (Muestreo Reducido)
Grande	>100,000	100	50
	50,001-100,000	60	30
Mediano	10,001-50,000	60	30
	3,301-10,000	40	20
Pequeño	501-3,300	20	10
	101-500	10	5
	≤100	5	5

PO Box 70184, San Juan, P.R. 00936-8184 | 787-765-2929 | www.salud.pr.gov

Technical Exhibit 5 – Bacteriology siting plan RWHS



Technical Exhibit 6 – Chemical Sampling sites



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